

RAPPN AMBASSADOR REFERRAL PROGRAM

Terms and Conditions

Preamble

These Terms and Conditions (“Terms”) govern the participation in the Rappn Ambassador Referral Program (“Program”) operated by Rappn, a company registered in the Canton of Zug, Switzerland (“Rappn” or “the Company”). By accepting access credentials to the Rappn Ambassador Dashboard and/or by using a referral link provided by Rappn, the Ambassador (“Ambassador” or “you”) agrees to be bound by these Terms in their entirety.

Rappn is a free grocery price comparison application available in Switzerland, comparing prices across major Swiss retailers. The Program is designed to reward individuals who promote Rappn within their communities through tracked referral links.

1. Definitions

“Referral Link” means the unique, trackable URL assigned to the Ambassador by Rappn, which directs users to the Rappn application or website and records click activity.

“Ambassador Dashboard” means the private, password-protected online platform provided by Rappn where the Ambassador can monitor click statistics, earnings, and referral link performance in real time.

“Qualifying Click” means a click on the Referral Link that meets the eligibility criteria set forth in Section 3 of these Terms.

“Earnings Per Click” (EPC) means the fixed monetary amount in Swiss Francs (CHF) payable to the Ambassador for each Qualifying Click, as negotiated between the parties prior to activation and hardcoded into the Ambassador Dashboard.

“Settlement Period” means one calendar month, after which accrued earnings are calculated and paid in accordance with Section 5.

“Fraudulent Activity” means any action, whether manual or automated, intended to artificially inflate click counts, including but not limited to the use of bots, click farms, scripts, VPNs used for the purpose of simulating Swiss IP addresses, incentivized clicking schemes, or any other deceptive practice.

2. Program Enrollment and Access

1. Rappn shall provide the Ambassador with a unique Referral Link and private login credentials to access the Ambassador Dashboard.

2. The login credentials are strictly personal and non-transferable. The Ambassador shall not share, disclose, or allow any third party to use their credentials.
3. The Ambassador is solely responsible for the security of their credentials. Any activity conducted under the Ambassador's account shall be attributed to the Ambassador.
4. Rappn reserves the right to revoke access to the Ambassador Dashboard at any time, with or without cause, upon written notice (including by email or messaging platform).

3. Qualifying Clicks and Geographic Eligibility

Only clicks that meet the following criteria shall be counted as Qualifying Clicks and shall generate earnings for the Ambassador:

- a) The click originates from a device with a Swiss IP address (i.e., the user is connected to the internet from within Switzerland at the time of clicking); or
- b) The click originates from outside of Switzerland, provided the device used has an active Swiss SIM card detected at the time of the click.

For the avoidance of doubt:

- a) Clicks originating from non-Swiss IP addresses where the device does not have a Swiss SIM card shall not constitute Qualifying Clicks and shall not generate any earnings.
- b) The "Other Countries" counter visible on the Ambassador Dashboard reflects these non-qualifying clicks for transparency purposes only. These clicks carry a value of CHF 0.00.
- c) Rappn reserves the sole and exclusive discretion to determine whether a click meets the geographic eligibility criteria. The Company's determination shall be final and binding.

4. Earnings Per Click (EPC)

5. The Earnings Per Click rate is negotiated between Rappn and the Ambassador prior to the activation of the Referral Link.
6. Once agreed, the EPC is hardcoded into the Ambassador Dashboard and shall apply uniformly to all Qualifying Clicks recorded during the applicable period.
7. Rappn reserves the right to modify the EPC rate for future periods upon 30 (thirty) days' prior written notice to the Ambassador. Any modification shall not apply retroactively to clicks already recorded.
8. The Ambassador acknowledges that the EPC rate may vary between different ambassadors based on individual negotiations, and shall have no claim to parity with rates offered to other participants in the Program.

5. Payment Terms

9. Earnings shall be settled on a monthly basis. The Settlement Period corresponds to one calendar month (from the 1st to the last day of the month).
10. At the end of each Settlement Period, Rappn shall calculate the total Qualifying Clicks and the corresponding earnings, which shall be reflected on the Ambassador Dashboard.
11. Payment shall be made within 30 (thirty) days following the end of the Settlement Period, via bank transfer to a Swiss or SEPA-eligible bank account designated by the Ambassador.

12. The Ambassador is solely responsible for providing accurate and complete banking details. Rappn shall not be liable for delays or losses resulting from incorrect payment information.
13. Rappn reserves the right to set a minimum payout threshold of CHF 10.00. If accrued earnings fall below this threshold at the end of a Settlement Period, the balance shall carry forward to the following period.
14. All amounts are stated in Swiss Francs (CHF). Any currency conversion costs, if applicable, shall be borne by the Ambassador.

6. Tax Obligations

15. The Ambassador is solely responsible for reporting and paying all applicable taxes, duties, and social security contributions arising from earnings received under this Program, in accordance with the applicable tax laws of their country of residence.
16. Rappn shall not withhold any taxes on behalf of the Ambassador, unless required by applicable Swiss law. In such case, Rappn shall notify the Ambassador in advance.
17. The Ambassador shall, upon request, provide Rappn with any tax identification numbers, certificates of residence, or other documents reasonably required by Rappn for compliance purposes.

7. Anti-Fraud Policy and Click Integrity

Rappn takes the integrity of the Program extremely seriously. The following provisions apply without exception:

- a) Rappn continuously monitors click activity using automated and manual fraud detection systems. These systems may analyze, among other things, IP patterns, click frequency, device fingerprints, session behavior, geographic anomalies, and other technical indicators.
- b) In the event that Rappn identifies or reasonably suspects Fraudulent Activity, whether through automated detection or manual review, Rappn shall be entitled, at its sole discretion, to take any or all of the following actions:
 - (i) Immediately suspend or permanently deactivate the Ambassador's Referral Link;
 - (ii) Revoke all access to the Ambassador Dashboard;
 - (iii) Withhold and retain any unpaid earnings for the current and any prior Settlement Period(s) where fraud is suspected;
 - (iv) Reclaim any amounts already paid that are attributable to Fraudulent Activity;
 - (v) Terminate the Ambassador's participation in the Program with immediate effect.
- c) The Ambassador acknowledges that Rappn's fraud detection findings shall constitute sufficient basis for any of the above actions. Rappn is not obligated to disclose the specific technical methods or evidence used in its fraud detection, provided that any action taken is supported by reasonable grounds.
- d) Rappn reserves the right to pursue any legal remedies available under Swiss law, including but not limited to claims for damages under Article 41 of the Swiss Code of Obligations (OR) and criminal complaints under Articles 146 (fraud) and 147 (computer fraud) of the Swiss Criminal Code (StGB).

8. Ambassador Obligations and Content Guidelines

The Ambassador agrees to the following obligations when promoting Rappn:

- a) All promotional content must be truthful, non-misleading, and consistent with the actual features and functionality of the Rappn application.
- b) The Ambassador shall clearly disclose the existence of a commercial or referral relationship with Rappn in any promotional post, in compliance with Swiss Unfair Competition Law (UWG), specifically Article 3(b) UWG regarding transparency in advertising, and any applicable platform guidelines.
- c) The Ambassador shall not make any claims, representations, or guarantees regarding Rappn that have not been expressly authorized by Rappn in writing.
- d) The Ambassador shall not engage in any activity that could harm the reputation, brand image, or commercial interests of Rappn, including but not limited to associating Rappn with illegal, discriminatory, hateful, or otherwise objectionable content.
- e) The Ambassador shall not use paid advertising (e.g., Meta Ads, Google Ads) to promote the Referral Link without Rappn's prior written consent.
- f) Rappn reserves the right to request the removal of any content that, in its reasonable opinion, violates these Terms or could damage the Company's reputation.

9. Intellectual Property

- 18. The Rappn name, logo, trademarks, and all related intellectual property remain the exclusive property of Rappn.
- 19. The Ambassador is granted a limited, non-exclusive, non-transferable, revocable license to use Rappn's name and logo solely for the purpose of promoting the Referral Link within the scope of this Program.
- 20. This license shall terminate automatically upon termination of the Ambassador's participation in the Program.
- 21. The Ambassador shall not register, apply for, or claim any rights over trademarks, domain names, or other intellectual property that are identical or confusingly similar to Rappn's marks.

10. Data Protection and Privacy

- 22. Rappn processes personal data of the Ambassador (such as name, email, bank details, and dashboard usage data) in accordance with the Swiss Federal Act on Data Protection (nFADP / DSG), effective since 1 September 2023, and any applicable cantonal data protection provisions.
- 23. Click data is collected in aggregated and anonymized form. Rappn does not share individual user data or personally identifiable click-level data with the Ambassador.
- 24. The Ambassador consents to the collection and processing of their personal data for the purposes of administering the Program, processing payments, and complying with legal obligations.
- 25. The Ambassador may exercise their rights under the nFADP (including rights of access, rectification, and deletion) by contacting Rappn at the email address provided in the Ambassador Dashboard or at the Company's registered address.

11. Confidentiality

26. The Ambassador shall treat as confidential all information relating to the Program that is not publicly available, including but not limited to: the agreed EPC rate, dashboard data, click statistics, internal communications, and any business information shared by Rappn.
27. This confidentiality obligation shall survive the termination of the Ambassador's participation in the Program for a period of 2 (two) years.

12. Term, Termination, and Suspension

28. This agreement enters into force upon the Ambassador's first use of the Referral Link or first login to the Ambassador Dashboard, whichever occurs first, and continues for an indefinite period.
29. Either party may terminate this agreement at any time by providing 14 (fourteen) days' written notice to the other party.
30. Rappn may terminate or suspend the Ambassador's participation with immediate effect in the event of a breach of these Terms, suspected Fraudulent Activity, or any conduct that Rappn reasonably considers harmful to its interests.
31. Upon termination, all rights granted to the Ambassador under these Terms shall cease. The Referral Link will be deactivated and access to the Ambassador Dashboard revoked.
32. Earnings for Qualifying Clicks recorded prior to the effective date of termination shall be paid in accordance with Section 5, unless forfeited under Section 7 (Anti-Fraud Policy).

13. Limitation of Liability

33. Rappn provides the Ambassador Dashboard and Referral Link tracking system on an "as is" and "as available" basis. Rappn does not warrant uninterrupted or error-free operation of the platform.
34. To the maximum extent permitted under Swiss law, Rappn shall not be liable for any indirect, incidental, consequential, or special damages arising out of or in connection with the Program.
35. Rappn's total aggregate liability under this agreement shall in no event exceed the total amount of earnings paid to the Ambassador during the 3 (three) months immediately preceding the event giving rise to the claim.
36. Rappn shall not be liable for temporary unavailability of the Dashboard, delays in data reporting, or minor discrepancies in click counts due to technical factors, provided that Rappn makes commercially reasonable efforts to maintain accuracy.

14. Force Majeure

Neither party shall be liable for any delay or failure in performance resulting from causes beyond its reasonable control, including but not limited to natural disasters, pandemic, war, government actions, internet outages, cyberattacks, or platform failures of third-party services.

15. Amendments

37. Rappn reserves the right to amend these Terms at any time. The Ambassador shall be notified of any material changes at least 14 (fourteen) days prior to the effective date of such changes.
38. Continued use of the Referral Link or Ambassador Dashboard after the effective date of any amendment shall constitute acceptance of the revised Terms.

39. If the Ambassador does not agree to the amended Terms, they may terminate their participation in accordance with Section 12.

16. Nature of Relationship

The Ambassador is an independent contractor. Nothing in these Terms shall be construed as creating an employment relationship, partnership, joint venture, or agency between the Ambassador and Rappn. The Ambassador has no authority to bind Rappn in any manner.

17. Severability

If any provision of these Terms is found to be invalid, illegal, or unenforceable by a court of competent jurisdiction, the remaining provisions shall continue in full force and effect. The invalid provision shall be replaced by a valid provision that most closely reflects the original intent.

18. Governing Law and Jurisdiction

40. These Terms shall be governed by and construed in accordance with the substantive laws of Switzerland, excluding the United Nations Convention on Contracts for the International Sale of Goods (CISG) and any conflict of law provisions.
41. Any dispute arising out of or in connection with these Terms shall be subject to the exclusive jurisdiction of the competent courts at the registered seat of Rappn in the Canton of Zug, Switzerland.

19. Entire Agreement

These Terms, together with the agreed EPC rate as reflected in the Ambassador Dashboard, constitute the entire agreement between the parties with respect to the subject matter hereof, and supersede all prior or contemporaneous oral or written agreements, representations, or understandings.